

Meeting Name:	Licensing Committee
Date:	29 January 2026
Report title:	Licensing Act 2003: Review of the Cumulative Impact Areas in Southwark.
Ward(s) or groups affected:	All Wards
Classification:	Open
Reason for lateness (if applicable):	Not applicable
From:	Strategic Director of Environment, Sustainability and Leisure

RECOMMENDATION(S)

1. That the Licensing Committee:

- a) Considers the review of the current Cumulative Impact Areas (CIAs) within the borough following an assessment of the data for the current zones and monitoring areas, which is attached to this report and referenced as **Appendix A**, in line with Section 5A of the Licensing Act 2003.
- b) Determines the status of the CIAs, based on data and information contained within the document referenced as **Appendix A**, so as to:
 - i. **Retain** Borough & Bankside as a CIA due to its persistently high density of licensed premises and associated crime.
 - ii. **Designate** Elephant & Castle as a new CIA, reflecting its escalating risk profile and concentration of alcohol-related harm.
 - iii. **Remove** Peckham and Camberwell from CIA status, as both areas demonstrate significant improvements and now present lower risk profiles. Old Kent Road and Walworth show mixed results; indicators suggest that lighter-touch interventions may be more appropriate.
 - iv. **Discontinue** all monitoring areas, as there is no evidence of ongoing risk in any part of the Borough.

2. Guidance¹ sets out the relevant information which licensing authorities may be able to draw upon to evidence the cumulative impact of licensed premises on the promotion of the licensing objectives which may include:
 - Local crime and disorder statistics, including statistics on specific types of crime and crime hotspots.
 - Statistics on local anti-social behaviour offences.
 - Health-related statistics such as alcohol related emergency attendances and hospital admissions.
 - Environmental Health complaints, particularly in relation to noise and litter.
 - Complaints recorded by the Local Authority, which may include complaints raised by residents or residents' associations.
 - Evidence from local councillors.
 - Evidence obtained through local consultation.

BACKGROUND INFORMATION

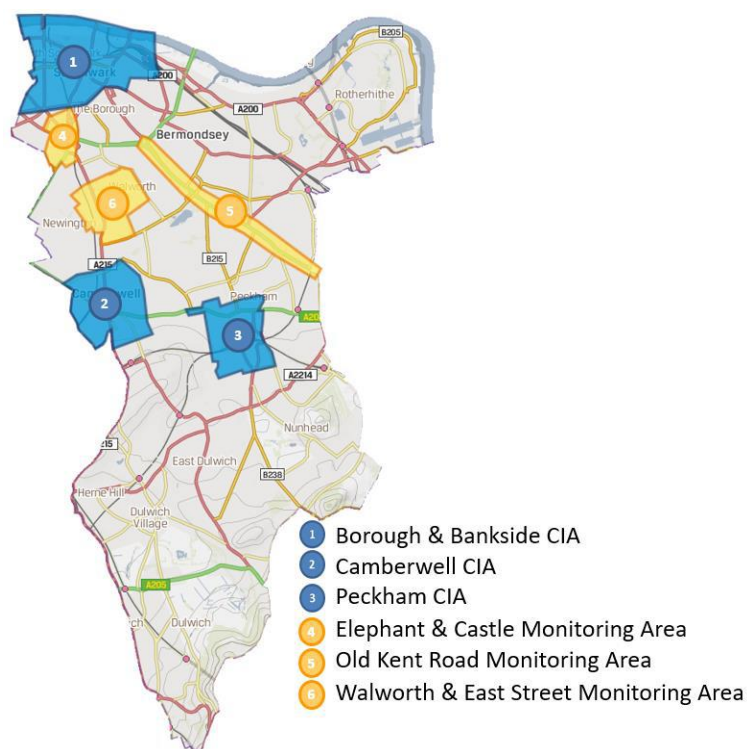
3. The Licensing Act 2003 “the Act” came into effect on 25 November 2005. The Act introduced a legal framework for local authorities to administer and regulate licensable activities, namely, alcohol, regulated entertainment, and late-night refreshment.
4. A Cumulative Impact Area is a designated zone where evidence has indicated that the number, type or type of density of licensed premises is impacting adversely on the licensing objectives, namely, crime and disorder, public safety, public nuisance and the protection of children from harm. This is caused by a significant number of licensed premises clustered in one or more defined geographical areas.
5. The CIA policy places a presumption that any new or variation of licence applications within the defined areas would likely add to the existing cumulative impact and should therefore be refused. The policy allows applicants to rebut the refusal presumption if they can demonstrate that the premises operation would not adversely impact the intention of the policy and add to the existing cumulative impact.
6. The implementation and assessment of a CIA Policy must be based on data specific to alcohol-related crime. The Policy is to be kept under review and is statutorily required to be reviewed every 3 years.
7. The CIAs were introduced to support the Southwark Statement of Licensing Policy aims of reducing the negative impact of alcohol on residents, visitors and businesses in the Borough.
8. Southwark introduced three CIAs between 2008 and 2011, in the areas of Borough and Bankside (2011), Camberwell (2008) and Peckham (2009).

[Revised guidance issued under section 182 of the Licensing Act 2003 \(November 2025\) \(accessible version\) - GOV.UK](#)

There are also three monitoring areas at Elephant & Castle, Walworth and Old Kent Road, which have been monitored since 2011.

9. Southwark's CIAs were last reviewed in 2023. The assessment undertaken did not uncover any new evidence to support the reclassification of any areas as CIAs. However, it did result in the inclusion of Steadman Street within the Elephant and Castle monitoring area.
10. A map of the borough highlighting the areas covered by the current CIA policy is provided below. A list of streets which fall within the current CIAs and for the monitoring area known as Elephant and Castle is referenced as **Appendix B** to this report.

Cumulative Impact Areas within the London Borough of Southwark



KEY ISSUES FOR CONSIDERATION

The purpose of the Cumulative Impact Assessment is as follows:

11. Under the Licensing Act 2003, the Licensing Authority (the council) is required to publish a statement on licensing policy every 5 years. The current Southwark Statement of Licensing Policy runs from 2021 to 2026 and is currently under review.
12. The Licensing Policy must take into account any Cumulative Impact Assessment (CIA) published under section 5A of the Act. If adopted, a licensing authority must review its CIA every 3 years. In the Act, cumulative impact is described as “the potential impact on the promotion of licensing

objectives of a significant number of licensed premises concentrated in one area”.

13. A licensing authority can publish a CIA to help limit the number or types of licence applications granted in areas where there is evidence demonstrating the number or density of licensed premises is having a cumulative impact which undermines the licensing objectives.
14. Where there are CIAs, there is a presumption that any new or variation of licence applications within the defined areas would likely add to the existing cumulative impact and should be refused unless the applicant can demonstrate that there will be no negative cumulative impact on the licensing objectives.
15. The publication of a CIA does not change how licensing decisions are made; the Licensing Authority will always consider each application on its merits. However, a CIA is a strong statement of intent about an authority’s approach to licence applications.
16. CIAs relate to applications for new premises licences and ‘club premises certificates, as well as applications to vary existing premises licences and club premises certificates in a specified area.

SUMMARY OF THE REVIEW

17. The 2025 assessment is informed by a defined set of datasets, including local crime and disorder statistics, and health indicators such as alcohol-related emergency attendances and hospital admissions.
18. It is noted that the licensing authority no longer has in-depth access to police data since the last review undertaken in 2023. In addition, data provided by the police relating to alcohol-related crime records for 2023/2024 is now categorised differently, preventing direct comparisons.
19. To ensure a thorough evidence-based assessment was undertaken, in addition to the crime and ambulance data, the 2025 assessment built on insights from previous assessments and drew on a wide range of data sources.
20. These included Metropolitan Police Service crime statistics, London Ambulance Service (LAS) alcohol-related callouts, and reports of anti-social behaviour (ASB).
21. To ensure a robust approach, we examined methodologies used by other boroughs to inform the datasets applied in our assessment. The review incorporated Southwark’s entire licensing landscape for a borough-wide perspective.
22. For the first time in Southwark, local authority complaints—particularly those linked to licensed premises—were analysed alongside licence

applications and approvals. This comprehensive approach strengthened the evidence base underpinning our policy decisions.

23. We analysed the density of licensed establishments, the types of outlets present, and the volume of licence applications submitted. This provided a clearer and more nuanced understanding of the borough's licensing dynamics.
24. The 2025 assessment built on insights from previous assessments and drew on a wide range of data sources. These included Metropolitan Police Service crime statistics, London Ambulance Service (LAS) alcohol-related callouts, and reports of anti-social behaviour (ASB).
25. It examined how clusters of licensed premises affect the borough's licensing objectives. It analysed trends and identified hotspots for alcohol-related crime, disorder, and nuisance, providing robust evidence to shape Southwark's Statement of Licensing Policy. Crucially, the review aimed to strike a balance—supporting the continued growth of the hospitality sector while safeguarding residents and maintaining public safety.
26. Spatial and temporal techniques were applied to identify high-density areas, crime hotspots, and peak times for incidents.

Peer Review and validation

27. To ensure data integrity and alignment, we worked in collaboration with Public Health and data analyst in Community Safety throughout the CIA review process. This collaboration included sharing detailed information on data sources, collection methods, and how these were applied in the assessment.
28. Public Health undertook a peer review of our methodology and the foundational data sources used for alcohol-related crime analysis within the CIA assessment. These sources align with those employed by their team, ensuring transparency, accuracy, and a shared understanding of the evidence base underpinning our findings.
29. The CIA policy assessment is provided at **Appendix A**.

Community, equalities (including socio-economic) and health impacts

Community impact statement

30. Each application is required under the Act to be considered upon its own individual merits with all relevant matters taken into account.
31. Central to this is a licensing process which aims to be inclusive and ensures that local community concerns are understood, debated and resolved. This is supported by offering broad support to licensees, through

the range of involved authorities, to establish best practice management, and by a strong directed enforcement resource

Equalities (including socio-economic) impact statement

32. Equality impact assessments are an essential tool to assist Councils to comply with the equalities duties and to make decisions fairly. Equalities and human rights impact assessments that are carried out should be mindful of the protected characteristics under the Equality Act 2010.
33. Members will need to consider whether there are any potential negative impacts on the protected characteristics as outlined in the assessment at the Committee Hearing. The current assessment is available in **Appendix C**.
34. Any decision made by Members of the Committee will also have to hold this in mind.

Health impact statement

35. Using data to guide the designation of cumulative impact areas is important to reduce alcohol related harm and support safer and healthier environments for residents. Areas with high densities of licensed premises can be associated with increased rates of alcohol related hospital admissions, ambulance callouts, crime and antisocial behaviour. By embedding data into licensing decisions, cumulative impact areas support evidence-based decision-making and enable efforts to address harm that can disproportionately affect vulnerable communities.

Climate change implications

36. On 27 March 2019, the council declared a climate emergency and considers the implications of climate change in all of its decisions. Following Council Assembly on 14 July 2021, the council has committed to considering the climate change implications of any decisions.
37. A review of the current CIA is not intended to have a negative impact on climate change.
38. Decisions on licences must be in line with the licensing objectives; however, as physical premises require planning consent, climate change can be addressed as part of the planning process.

Resource implications

39. The review of the Cumulative Impact Areas does not have any resource issues.
40. The resource costs of managing this process may be borne within the current licensing budget

Consultation on the Cumulative Impact Assessment

41. The CIA policy assessment is intended to be undertaken with a public consultation in accordance with the provisions of the Licensing Act 2005, Section 5(3). As such, it is proposed that the consultation will take place as set out below.
42. The policy will be introduced by circular email sent to:
- The chief officer of the police
 - The fire authority
 - Representatives of holders of premises licences, club premises certificate holders and personal licence holders
 - Representatives of businesses and residents
 - All responsible authorities specified under the Act.
43. The statutory consultees will be notified of the review and consultation of the CIA policy and how to respond. The consultation will also be advertised at the Council's offices in Tooley Street and on the Council's website. The CIA policy report will be available for comment for a four-week period from 02 February 2026 to 01 March 2026 on the Council's website.

Implementation Table

Implementation timeline	
Public consultation 4 weeks	02.02.2026 to 01.03.2026
Licensing Committee Consideration of responses to the review and to determine the status of CIAs in Southwark	TBC June 2026

SUPPLEMENTARY ADVICE FROM OTHER OFFICERS

Assistant Chief Executive - Governance and Assurance

44. The Licensing Act 2003 ("the 2003 Act") requires the Council, as the licensing authority, to prepare and publish a statement of its licensing policy every five years. Southwark's current Statement of Licensing Policy 2021-2026 was approved by Council Assembly on 30 November 2020 which included the current CIAs. After publishing a CIA the licensing authority must, within three years, consider on the continuation of the CIAs based on the assessment in **Appendix A**.

45. In determining its policy, the Council is exercising a licensing function and as such, must have regard to the Guidance issued by the Secretary of State under section 182 of the 2003 Act. It must also give appropriate weight to the views of those persons/bodies listed in section 5(3) of the Act, which it is required to consult before determining its policy.
46. Although the Guidance represents best practice, which the Council must have regard to. The Guidance is therefore binding on the licensing authorities to that extent. As long as the Guidance has been properly and carefully understood and considered, licensing authorities may depart from it if they have reason to do so. In this event, they will need to give full reasons for their decisions, which must be consistent with the objectives of the 2003 Act.
47. The Council is required to have regard to the statement of licensing policy and make decisions in accordance with it. Licensing authorities may depart from their policy if the individual circumstances of any case merit such a decision in the interests of promoting the licensing objectives. In this event it is important that full reasons are given for departing from the published statement of licensing policy.
48. Members should note that the 2003 Act imposes a duty on the Council, as the licensing authority, to carry out its functions under the Act with a view to promoting the four licensing objectives, namely:
- the prevention of crime and disorder
 - the promotion of public safety
 - the prevention of public nuisance
 - the protection of children from harm.
49. Each of these objectives is of paramount and equal importance. There are no other licensing objectives, and therefore the Council cannot reject an application for a licence or impose conditions on a licence for any purpose unrelated to the promotion of these objectives. For example, whether or not there is a 'need' for another licensed premises in a given area is a matter for planning committees, but is not a matter for a licensing authority in its statement of licensing policy or in discharging its licensing functions.
50. However, the cumulative impact of licensed premises on the promotion of the licensing objectives is a matter for the Council to consider when reviewing or adopting its statement of licensing policy. The Guidance explains 'cumulative impact' as the potential impact on the promotion of the licensing objectives – for example, crime and disorder and/or public nuisance - of a significant number of licensed premises concentrated in one area.
51. Positive equalities obligations are placed on local authorities, sometimes described as equalities duties, with regard to race, disability and gender. Race equality duties were introduced by the Race Relations Amendment Act 2000, which amended the Race Relations Act 1976. Gender equalities

duties were introduced by the Equality Act 2006, which amended the Sex Discrimination Act 1975. Disability equality duties were introduced by the Disability Discrimination Act 2005, which amended the Disability Act 1995.

52. Under the Local Authorities (Functions and Responsibilities) (England) Regulations 2000, as amended, decisions relating to licensing matters cannot be the responsibility of an authority's executive. The 2003 Act provides that whilst the majority of the functions of the licensing authority, are to be taken or carried out by its licensing committee, decisions relating to the statement of licensing policy cannot be delegated in such a way. The decision on whether to adopt the statement of licensing policy must therefore be taken by council assembly.

Strategic Director of Resources

53. This report is requesting the licensing committee to consider the recommendations set out in paragraph 1 above. The Strategic Director Resources notes the recommendations and that there are no identified additional resource implications as a result of these proposals, and notes that staffing and any other running costs connected with these recommendations are to be contained within existing departmental revenue budgets.

BACKGROUND DOCUMENTS

Background Papers	Held At	Contact
The Licensing Act 2003 plus secondary regulations	The Licensing Service, 3 rd Floor 160 Tooley Street, London, SE1	Mrs Esther Jones Email: esther.jones1@southwark.gov.uk
The Home Office Guidance to the Act, published as amended Feb 2025.		
Cumulative Impact Areas review December 2023		

APPENDICES

No.	Title
Appendix A	Cumulative Impact Area Assessment Policy Report – December 2025
Appendix B	Names of Streets within the current CIA and the Elephant and Castle Monitoring Area
Appendix C	Equalities Impact Needs Assessment

AUDIT TRAIL

Lead Officer	Aled Richards, Strategic Director of Environment, Sustainability and Leisure		
Report Author	Bina Patel, Business Unit Manager Neighbourhood Nuisance		
Version	Final		
Dated	13 November 2025		
Key Decision?	Yes		
CONSULTATION WITH OTHER OFFICERS / DIRECTORATES / CABINET MEMBER			
Officer Title		Comments Sought	Comments Included
Assistant Chief Executive – Governance and Assurance		Yes	Yes
Strategic Director of Resources		Yes	Yes
Cabinet Member		No	No
Date final report sent to Constitutional Team			10 December 2025